

PETITION - PENNSYLVANIA Sec. 3019 TRAFFICKING VACATUR AND EXPUNGEMENT
PACKET

IN THE COURT
(the Pennsylvania court of common pleas for the county of conviction)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Case number, if the court assigns one at filing:
.....

PENNSYLVANIA Sec. 3019 TRAFFICKING VACATUR AND EXPUNGEMENT PACKET

A. WHAT THE COMMITTED RECORD ESTABLISHES ABOUT THIS ROUTE

This petition is brought on the route the committed route contract records as "Human-trafficking vacatur and expungement", under 18 Pa.C.S. Sec. 3019.

The compiled Pennsylvania profile records the substance of this route as follows. Pennsylvania recognizes vacatur for certain convictions connected to human trafficking. Wilma should treat any trafficking-survivor fact pattern as an attorney escalation path. Community Legal Services summarizes Pennsylvania record clearing as including vacatur, explaining that trafficking victims may be eligible to have certain convictions undone and expunged. ("<https://clsphila.org/my-clean-slate/faq/>")

The committed contract records the timing of this route as: no ordinary waiting period; relief follows completion of the statutory diversion route, or the offense and direct-result nexus showing for vacatur.

The committed contract records these conditions on the route: Exact Pennsylvania route and statutory exclusions; ARD sexual-offense exclusions; Sec. 6308 only for underage branch; Sec. 3019 trafficking predicate.

B. THE PETITIONER

Name: Maria-Alejandra O'Shaughnessy-Whitfield
Date of birth: 1968-12-31

C. THE FACTS OF THIS MATTER, WHICH THE PETITIONER SUPPLIES FROM THE RECORD

Each item below is printed in the words the committed record uses for it. Fill each one from the record itself, never from memory.

[C1 - ard order/completion/dismissal] ARD order/completion/dismissal?
.....
.....

[C2 - exact offense and victim age] Exact offense and victim age?

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.....

[C3 - date of birth and age 21] Date of birth and age 21?

.....
.....

[C4 - sentence terms] Sentence terms?

.....
.....

[C5 - trafficking nexus] Trafficking nexus?

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.....

[C6 - prosecutor consent/certification] Prosecutor consent/certification?

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.....

[C7 - diversion completion] Diversion completion?

.....
.....

D. THE REQUEST

The petitioner asks the Court to vacate and expunge the conviction described above under 18 Pa.C.S. Sec. 3019.

DATE SIGNATURE OF PETITIONER

(The petitioner signs and dates this petition personally. Nothing on this page is signed or dated for the petitioner.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

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39501-2214

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Route: obligation:runtime-only:PA:path-k-human-trafficking-vacatur-expungement

FILING INSTRUCTIONS - PENNSYLVANIA Sec. 3019 TRAFFICKING VACATUR AND EXPUNGEMENT PACKET

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

FILING INSTRUCTIONS - PENNSYLVANIA Sec. 3019 TRAFFICKING VACATUR AND EXPUNGEMENT PACKET

WHAT THIS ROUTE IS, AND WHO RUNS IT

The committed route contract records this route as "Human-trafficking vacatur and expungement", under 18 Pa.C.S. Sec. 3019, with outcome mode "participant_packet".

The committed contract names the packet components for this route as: Petition to vacate or expunge; Trafficking nexus evidence; Diversion completion record where applicable. This packet composes the filing pages; anything on that list that is a RECORD rather than a pleading is a document you obtain and file with the petition.

Who runs it: The participant petitions and the court decides - and the compiled profile records the handling instruction first: Pennsylvania "should treat any trafficking-survivor fact pattern as an attorney escalation path". The committed census records this route's current service disposition as a PRODUCT SCOPE EXCLUSION, which is a recorded decision that this route is not offered as a self-help product. This packet is review evidence, not an invitation to file alone.

WHAT YOU DO

- Read the stop conditions before anything else. Two separate committed records point the same way here.
- If you go on with help, the committed contract names trafficking nexus evidence and, where applicable, a diversion completion record as components.
- Fill only the labelled items. Nothing on any page asks for an account of what happened to you.

WHAT YOU DO NOT DO

- Do not write an account of what was done to you on any page of this packet. Nothing here asks for one, and the compiled record's own instruction is that this route goes to legal aid or an attorney.
- Do not file anything before you have thought about what becomes public when you do. A court file is a public record unless something makes it otherwise, and nothing in this packet makes it otherwise.
- Do not read this packet as the ordinary Pennsylvania non-conviction expungement. The compiled profile records those as Pa.R.Crim.P. 490 and 790 petitions with their own statewide forms; this is a different route with a different statute.

WHAT IT COSTS, AND WHETHER A WAIVER EXISTS

No committed record this packet binds states a filing fee, or a fee waiver, for this route. The office that answers both is the office of the clerk of courts of the Pennsylvania county of conviction. Ask before you

go, because a filing you cannot pay for is a filing you cannot make.

WHO MUST BE SERVED, AND WHO IS NOTIFIED

No committed record this packet binds states who must be served on this route, or how. The office that answers it is the office of the clerk of courts of the Pennsylvania county of conviction.

WHEN TO STOP AND GET HELP INSTEAD

- ****this is the first thing the committed record says about this route:**** Pennsylvania should treat any trafficking-survivor fact pattern as an attorney escalation path, and the committed census records this route's service disposition as a product scope exclusion;
- the facts that establish the connection are yours to tell and yours alone. No page in this packet asks for an account of what was done to you, and nothing here should be written out for anyone who has not been engaged to act for you;
- your own safety is in question, now or once a filing becomes a public court record;
- there are other counts on the same case, or other cases - every committed contract in this group records other counts as a fact the route must collect;
- any immigration question is involved.

Route: obligation:runtime-only:PA:path-k-human-trafficking-vacatur-expungement